

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, JULY 24, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**JAY SHERWOOD vs. JAMES WHITE dba JAMES' BOAT AND FIBERGLASS
REPAIR
Case No. CL25-06219**

Motion for Order Directing a Levying Officer to Enter a Private Place and Seize Property Pursuant to C.C.P. §699.030

TENTATIVE RULING

C.C.P. §699.030 authorizes the court, on ex parte application or noticed motion if the court so orders, to issue an order directing a levying officer to seize personal property in a private place, as long as the application or order describes the personal property and location with particularity.

In general, the levying officer may take possession of personal property if it is in the judgment debtor's custody, or the custody of the judgment debtor's agent. C.C.P. §714.020(a).

Although a separate action must be filed against a third party to levy against personal property in the third party's possession, such as through a bona fide lease, a transfer of a business from father to son would not create rights for the son superior to those of existing judgment creditors such as Plaintiff.

Still, the court has concerns about the Plaintiff's intended actions once the subject personal property is seized, such as what commercially reasonable sale or sales are intended to occur for the property; and what recourse other creditors, including but not

limited to any creditors with security interests in any of the subject personal property, might have.

For these reasons, parties are to appear for hearing as scheduled.

JAIME ANDUJO vs. GENERAL MOTORS, LLC
Case No. CU23-00155

Plaintiff's Motion for Attorneys' Fees

TENTATIVE RULING

Plaintiff JAIME ANDUJO moves for an award of attorneys' fees and costs following settlement of this action brought under the Song-Beverly Consumer Warranty Act (the "Act" or "lemon law") against Defendant GENERAL MOTORS, LLC.

Timeliness of Fee Motion. A prevailing buyer under the lemon law shall be allowed to recover attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the prosecution of his action. (Civ. Code, § 1794, subd. (d).) California Rules of Court, Rule 3.1702 requires a motion for attorneys' fees to be filed and served within the time for filing a notice of appeal, which is the sooner of 180 days from entry of judgment or 60 days from service of notice of entry of judgment. If a case ends in a dismissal then the 180-day deadline controls and begins to run from after entry of the order of dismissal. (*Catlin Ins. Co., Inc. v. Danko Meredith Law Firm, Inc.* (2022) 73 Cal.App.5th 764, 781.)

This case was dismissed on February 3, 2026. Plaintiffs' motion, filed and served by February 23, 2026, is timely.

Analysis of Fee Award. When awarding required fees to a lemon law plaintiff a court must make an initial determination of the actual time expended and then ascertain whether under all the circumstances of the case the amount of actual time expended and the charge for the time are reasonable. (*Hanna v. Mercedes-Benz USA, LLC* (2019) 36 Cal.App.5th 493, 507 (*Hanna*).) These circumstances include, but are not limited to, the complexity of the case, procedural demands, skill exhibited, and results achieved. (*Ibid.*) If the time expended or the charge for that time are not reasonable under all the circumstances the court must take this into account and award a lesser amount of fees. (*Ibid.*) The prevailing buyer has the burden of showing that the fees incurred were allowable, reasonably necessary, and reasonable in amount. (*Ibid.*) A reasonable hourly rate is one that fits with prevailing rates for like work in the same area. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) This "lodestar" method of fee award calculation vests discretion in the trial court to decide which hours are reasonably spent on litigation and what hourly rates should be used. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 35.) This is because a trial judge is the best judge of the value of professional services rendered in the trial court. (*Goglin v. BMW of North*